

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

Crl.P.L.A No. 1132/L/2018

(Against the judgment dated 03.10.2018, passed by the Lahore High Court, Lahore, in Criminal Appeal No.1079-J of 2015 and Murder Reference No.475 of 2015)

Saddam Hussain

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner : Mr. Muhammad Ramzan Ch, ASC

For the State : Rana Tassawwar Ali Khan, Addl. PG Punjab

For the Respondent : Syed Seerat Hussain Naqvi, ASC

Assisted by : Ms. Tayyaba Munir, Law Clerk

Date of hearing : 27.04.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- The Petitioner, Saddam Hussain, was booked vide FIR No. 03/2012 dated 01.01.2012, registered at Police Station Satiana (Rodala Road), Jaranwala, District Faisalabad for the commission of an offense punishable under Section 302/34 of the Pakistan Penal Code ("**PPC**"), regarding the murder of Javed alias Katta ("**deceased**"). Dissatisfied with the police investigation, the complainant, Nazar Mohammad (PW-1), filed a private complaint. The petitioner stood trial before the Court of learned Additional Sessions Judge, Jaranwala, who vide judgment dated 13.11.2015, convicted the petitioner under Section 302(b) PPC and sentenced him to death penalty. Aggrieved by the same, the petitioner preferred Criminal Appeal No. 1079-J/2015 before the Honorable Lahore High Court, Lahore. The learned Division Bench of the High Court, vide judgment dated 03.10.2018, maintained the conviction and partially

disposed of the appeal by converting the capital punishment into imprisonment for life along with payment of Rs. 2,00,000 to legal heirs of the deceased and in default to undergo 6 months SI.

2. Through the instant Petition, the petitioner-convict, seeks leave to appeal against the impugned judgment.

3. The prosecution's case as per the private complaint and the FIR is that on the 1st of January, 2012, at approximately 03:30 PM, the complainant, Nazar Mohammad (PW-1), was present at his residence along with his son Javed alias Katta (deceased) and witnesses Mohammad Aslam (PW-2) and Ahmed Ali. The peace of the afternoon was allegedly shattered when the present petitioner, Saddam Hussain, along with his co-accused Sooba (absconder) and Waryam (since deceased), appeared on the rooftop of an adjacent house. It is alleged that upon the lalkara raised by co-accused Sooba to avenge the abduction of his sister by the deceased, the petitioner, Saddam Hussain, being armed with a 12-bore repeater, fired the first shot which struck the neck of deceased. Then co-accused Waryam fired the second shot that struck the deceased on left flank and the third fire was shot by Sooba which struck the deceased on left thigh after which he fell to the ground. Afterwards the petitioner and co-accused persons discharged a flurry of shots from their position on the roof which struck different parts of the body of the deceased. Upon hue and cry, the accused persons, while resorting to triumphant vociferation (lalkara), managed to escape from the scene of the crime. Consequently, the deceased, having sustained firearm injuries, succumbed to his wounds on the spot. The complainant stated that a deep-seated vendetta existed between the parties, tracing back to the abduction of co-accused Sooba's sister by the deceased approximately four to five years prior to the incident.

4. Arguments heard, and having carefully examined the record, we have observed a multitude of doubts and material discrepancies in the prosecution's case which strike at the very heart of the alleged occurrence.

5. It is manifest from the record that the petitioner does not merely offer a bare denial of the charges from very inception but alleges a specific and detailed "cross-version" of the occurrence. In response to a question put to him in his statement under Section 342 Cr.P.C., the petitioner categorically stated that the deceased actually sustained fatal injuries from the indiscriminate firing of his own companions, and that his brother, co-accused Sooba, also sustained firearm injuries at the hands of the deceased's companions. The relevant part of his statement is reproduced below:

Q11. Why this case against you and why the PWs depose against you?

Ans. The PWs are inter-se-related with each other and falsely implicated me in this case. Mohabat, Mubashir and Liaqat accused of cross version injured Soba my brother and deceased Javed alias Katta received firearm from his own companion Mohabat, Mubashir and Liaqat. I was not present at the place of occurrence at the time of occurrence.

This defense plea is not a mere afterthought, as it finds significant corroboration in the testimony of Khadim Hussain SI/ Investigating Officer (CW-5), who admitted in his deposition that during the course of the investigation, and following the arrest of co-accused Sooba, he recorded the cross-version of the incident on 31.01.2012. Acting upon this cross version, he proceeded to arrest Mohabat, Mubashar and Liaqat, the accused persons named in the cross-version on 20.02.2012. The relevant part of his statement is reproduced below:

"On 30-01-12 I also arrested accused Suba present in court and on the next day. I recorded the cross version of this case u/s 324/34 PPC.....

.....On 20-02-12 I arrested the accused persons Mohabat, Mubashar Ahmad and Liaqat Ali. At the time of arrest gun 12-bore was recovered from the possession of Mohabbat and rifle 7-MM recovered from the possession of Mubashar accused which were taken into possession through separate recovery memos"

6. It is of significant legal importance to note that CW-5 also made several startling admissions during cross-examination that strike at the very root of the prosecution's case. He admitted that upon conducting a thorough investigation, the 'cross-version' furnished

by the accused party was found to be correct and based on facts and the deceased was not murdered by the petitioner but was, in fact, killed by the firing of his own companions. He stated that co-accused Sooba had indeed sustained injuries and that Waryam (co-accused) had actually accompanied the injured Sooba to the hospital before the deceased, Javed, even sustained his injuries, a fact which creates serious doubts in the prosecution's timeline of events. The relevant excerpts from the statement of CW-5 are reproduced as under:

"It is correct that Sadam Hussain stated before me during investigation that I am innocent, actually Javed alias Katta deceased alongwith others injured my brother Suba. It is correct that Suba was injured by Mohabbat, Mubashar and Liaqat etc. by firing due to the dacoity dispute. It is correct that 20-21 respectables of the vicinity appeared before me in support of version of Suba, Sadam and Wariam and stated that they are innocent in the murder of Javed Alias Khatta on different occasions. It is correct that it was the version of the accused persons Sadam etc. that Javed alias Katta received fire arm injury by the hands of his companies Mohabbat etc. It is correct that I found in my investigation that Wariam accused was not present at the place of occurrence. Wariam escorted Suba to hospital in injured condition prior to the injuries of Javed alias Katta. It is correct that when Javed alias Katta received fire arm injuries. Wariam and Suba were not present there. It is correct that version of the accused was found correct in my investigation that Mohabbat, Mubashar, were declared guilty in cross-version. It is correct that accused Mohabbat got recovered 12-bore gun and Mubashar got recovered 7-MM in cross-version case."

7. It is an established fact on the record that the petitioner and the deceased were immediate neighbors, shared a history of prior enmity, and that a cross-fire did, in fact, take place on the day of the occurrence. In such circumstances, where the parties are already at daggers drawn, the possibility of a 'sudden flare-up' or a 'free fight' cannot be ruled out. However, rather than coming to the Court with clean hands, the complainant party appears to have shrouded material facts of the case to minimize their role and leveled an exaggerated charge against the petitioner.

8. A pivotal conflict also exists between the ocular account and the medical evidence, which further decimates the credibility of the

prosecution's story. According to the eyewitnesses (PW-1 and PW-2), the occurrence took place at 03:30 PM on 01.01.2012. The post-mortem report (Ex. CW-7/1 and CW-7/2) reveals that the dead body of the deceased was received at the mortuary at 09:00 AM on 02.01.2012, and the examination commenced at 09:30 AM with probable time elapsed between death and post mortem of 12-18 hours. Dr. Farooq Ahmed Kasana [CW-7] in cross-examination, stated that based on the state of the body, the occurrence may have actually taken place at 09:30 PM on 01.01.2012. As per ocular account, the petitioner fired from the roof while the deceased stood in the courtyard (a downward angle) but CW-7 unequivocally stated that the nature of the injuries suggests the fire could have been caused from an equal level (parallel trajectory). The relevant portion of the medical officer's testimony is reproduced below:

"...Occurrence may be took place at 09:30 PM night on 01.01.2012. Fire can be caused from equal level of the accused with the deceased."

The prosecution's narrative is further falsified by the medical evidence concerning the nature of the injuries. According to the ocular account, the petitioner was allegedly armed with a 12-Bore Repeater, co-accused Sooba with a 12-Bore Pump Action Gun, and Waryam also with a Pump Action Gun. However, the Medical Officer and the Post-Mortem Report (Ex. CW-7/1) clarify that all the entry wounds on the body of the deceased are of the exact same dimensions. The relevant portion is reproduced below:

DESCRIPTION OF INJURIES.

- 1. Multiple fire arm wound about 8 in number each 0.9 x 0.9cm edges inverted in area 12 cm, x 6 cm on outer back left neck and upper inner back left scapula reason with exit wound 3 in number on front left neck. about 0.5 x 0.7 cm edges averted in area 6 cm x 4 cm.*
- 2. Multiple Fire arm wound about 9 in number each about 0.9 cm x 0.9 cm edges inverted in area 11 cm x 10 cm on outer mid lower left chest about 12 cm below; axilla.*
- 3. Fire arm multiple wounds about 6 in number each about 0.9 x 0.8 cm edges inverted on outer lower back left thigh 6 cm above knee with exit wound 6 in number each about 0.8 x 0.8 cm in area 9 cm x 8 cm on frontal outer mid left thigh*

This uniformity of wound characteristics is a tell-tale sign that the injuries were the result of firing from a single weapon used by a single person, rather than a volley of fire from three different individuals using different firearms. This forensic reality directly contradicts the ocular version of a joint attack and provides significant weightage to the 'cross-version,' which suggests that the deceased was caught in a specific line of fire from his own companions. Such a glaring contradiction between the medical dimensions and the ocular story creates a reasonable doubt as to the participation of the petitioner in the manner described by the complainant. Reliance in this regard is placed on *Farman Ali v. State* [PLD 1980 SC 201]

9. In the light of the above discussion, the categorical testimony of CW-5, which unequivocally validates the 'cross-version', when coupled with the glaring ocular-medical conflict regarding the timing of the incident and the trajectory of the fire, creates a dent in the prosecution's case that is too large to ignore. These contradictions do not merely suggest minor discrepancies but rather provide substantial corroboration to the defense's stance that the deceased was killed in a different manner, the details of which remain shrouded in mystery. When the very genesis of the occurrence is shrouded in such heavy clouds of doubt, the law leaves this Court with no option but to extend the benefit of such doubt to the accused as a matter of right.

10. In approaching the final determination of this case, this Court is guided by the foundational pillar of criminal jurisprudence famously articulated in Blackstone's Ratio: the timeless caution that 'it is better that ten guilty persons escape than that one innocent suffer.' This enduring maxim is not merely a moral preference but is firmly anchored in the Presumption of Innocence, a 'Golden Thread' described by Viscount Sankey in *Woolmington v DPP* ([1935] AC 462) which runs through the entire fabric of our legal tradition. By prioritizing this 'asymmetry of error,' the law dictates that the risk of an unpunished wrong is always preferable to the moral

catastrophe of wrongful conviction of an innocent. Consequently, where the evidence is clouded by the degree of doubt present in this case, the integrity of justice demands that the scales tip in favor of the accused, for to condemn the innocent would create a deficit of truth that no number of successful convictions could ever rectify.

11. Consequently, the petitioner's involvement in the alleged murder remains unproven beyond a shadow of reasonable doubt. Therefore, this petition is converted into an appeal and the same is allowed. The conviction and sentence of the petitioner recorded by the courts below are hereby set aside. The appellant, Saddam Hussain, is acquitted and he shall be released from the jail forthwith, if not required to be detained in connection with any other case.

Judge

Judge

Judge

Lahore the
27th April, 2026

Approved for Reporting
Tayyaba Munir, Law Clerk